Our ref: REIS6722
Your ref: EC22-002103

30 November 2022

By Email Only: wacompliance@ndiscommission.gov.au

ATTENTION: Mr Philip Halton
Branch Head, Operations – North Central West
Compliance Western Australia
NDIS Quality and Safeguards Commission
Level 1, 200 St Georges Terrace
PERTH WA 6000

Dear NDIS Quality and Safeguard Commission ('**Commission**')

Simon Reid Proposed Banning Order – Response Submission

We refer to the matter above and your letter dated 17 November 2022 in relation to the Notice of intention to make a banning order and make submissions.

We confirm that we act for Mr Simon Reid ('**Client**') in this matter.

We refer to our letter dated 22 November 2022 to the Commission seeking an extension of time to respond to the proposed banning order considering over 20 complainants and numerous allegations that were levelled against our Client.

Our Client received the abovementioned Notice on 18 November 2022, where the Commission provided our Client with a time frame of 12 days to respond to these serious allegations. To date, the Commission has not responded to our request for an extension of time.

Given what is considered an unreasonable timeframe to respond to these allegations, a detailed response to the proposed Banning Order has not been possible. As such, the only option available for our Client is to provide a response based on a rudimentary review of the available information. It is our opinion that the Commission has compromised any procedural fairness afforded to our Client and gives the perception that the Commission has already made a determination in this matter.

RESPONSE TO ALLEGATIONS

Under *Relevant concerns*, the Commission's letter notes the arrest of Ms Vida Reid and the four offences she has been charged with, an overview of the statement of material facts and Ms Vida Reid's bail conditions. Given that our Client has not been charged with any criminal offence, we question the relevance of this in relation to our Client's fitness.

Our Client rejects and/or denies his involvement in the following allegations contained in the Commission's notice of the proposed five-year Banning Order.

- NDIS participants' plans were claimed against by Hybrid Hive Pty Ltd without the participants' knowledge of any service delivery nor with their consent.

- Hybrid Hive Pty Ltd submitted falsified and inappropriate claims against the expiring or expired NDIS plan of NDIS participants.

- Hybrid Hive Pty Ltd, and Rejaul Alam, on behalf of Hybrid Hive Pty Ltd, authorised payments of invoices on behalf of participants without their consent.

- Hybrid Hive Pty Ltd, Forward Focused Group Pty Ltd and representatives operating on behalf of Hybrid Hive Pty Ltd engaged in aggressive claiming activities against the NDIS plans of NDIS participants, making inappropriate and falsified claims for support and services not delivered.

From the information provided in the Commission's letter, nowhere does it state what our Client, Simon Reid, is alleged to have done. We further note the allegations stated above solely refer to the activities of Hybrid Hive, Rejaul Alam, and Vida Reid.

The Commission's assumptions to link our Client to the alleged wrongdoing based on his shareholding and directorship of Hybrid Hive are flawed.

Our Client is in possession of evidence that supports the view that an employee within Forward Focus Group Pty Ltd was the person engaging in corrupt practices and is likely the person responsible for the above allegations.

CONCLUSION

As noted in the Commission's letter, Ms Vida Reid has been criminally charged with a number of offences. The evidence to be provided to the Court in that matter will demonstrate that our Client has not been involved in any behaviour that compromises his integrity. As such, a banning order prohibiting our Client from being involved in the provision of services and support, both directly and indirectly, to people with disability should not be considered until the outcome of Ms Reid's criminal matters. Any decision to ban our Client is premature and would be procedurally unfair if Ms Reid is acquitted.

We look forward to the Commission's response.

Kind regards

Tom & Co Legal

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